



CHAPTER cxv.

An Act to confer powers upon the Cleveland and Durham County Electric Power Company with reference to the supply of electricity in parts of the east north and west ridings of York and in the city of York and part of the county of Durham and further powers with reference to such supply in their existing area of supply and for other purposes. [3rd August 1928.] A.D. 1928.

WHEREAS by the Cleveland and Durham County Electric Power Act 1901 (hereinafter called "the Act of 1901") the Cleveland and Durham County Electric Power Company (hereinafter called "the Company") were incorporated and authorised (amongst other things) to acquire lands and buildings to erect certain electrical generating stations and other works and to supply electrical energy for certain purposes within certain parts of the county of Durham and of the north riding of the county of York (hereinafter called "the existing area of supply"):

And whereas by the Cleveland and Durham County Electric Power Act 1903 (hereinafter called "the Act of 1903") the Act of 1901 was amended and the Company were authorised to construct generating stations elsewhere than on the lands scheduled to the Act of 1901 and to acquire by agreement any undertakings authorised by Provisional Orders granted under the Electric Lighting

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A.D. 1928. — Acts 1882 and 1888 to local authorities or other undertakers in respect of districts within the existing area of supply :

And whereas by the Cleveland and Durham County Electric Power Act 1913 (hereinafter called "the Act of 1913") further powers were conferred upon the Company with respect to the acquisition working and maintenance by the Company of the generating stations of other companies bodies and persons and the association of the Company with other companies and persons with respect to the provision supply and disposal of apparatus and appliances and to financial and other matters :

And whereas the existing area of supply was defined in the Act of 1901 by reference to the boundaries of poor law unions and it is expedient to provide for such redefinition of the same by reference to local government areas as is in this Act contained :

And whereas under and by virtue of numerous Provisional and Special Orders made under the Electricity (Supply) Acts 1882 to 1926 the Company are authorised to supply and are supplying and distributing electricity for all public and private purposes in numerous areas of supply to which such Orders relate within the existing area of supply and have made application for two Special Orders enabling them to supply electricity for the said purposes in certain areas situate partly within the existing area of supply and partly within the new area of supply as defined by this Act (hereinafter called "the new area of supply") :

And whereas it is accordingly expedient in the interests of the development of the supply of electricity within the existing and the new area of supply that the powers contained in this Act with respect to the supply of electricity in those areas respectively should be conferred upon the Company :

And whereas as recited in effect in the preamble to the County of Durham Electric Power Supply Act 1909 (hereinafter referred to as "the Durham Act of 1909") the Newcastle-upon-Tyne Electric Supply Company Limited (hereinafter referred to as "the Newcastle Company") the County of Durham Electric Power Supply Company (hereinafter referred to as "the Durham Company") and the Company supply electricity under statutory powers within areas of supply which collectively

constitute a continuous area and by the Durham Act of 1909 powers were conferred upon the Company and those companies respectively to enter into agreements for mutual assistance and for association with each other together with incidental powers for those purposes as in the said Act provided so that the said companies might be enabled to exercise the powers then already conferred upon them respectively with more efficiency and economy: A.D. 1928.

And whereas it is expedient that for similar reasons powers similar to those conferred as aforesaid by the Durham Act of 1909 should be conferred upon the Newcastle Company and the Company in relation to and for the purposes of the supply of electricity by the Company under this Act within the new area of supply and the undertaking of the Company in respect of such area authorised by this Act and also in relation to and for the purposes of the supply of electricity by the Company within the existing area of supply:

And whereas it is expedient that such further powers be conferred upon the Company and such further provisions be enacted as are contained in this Act:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Cleveland and Durham County Electric Power Act 1928 and the Cleveland and Durham County Electric Power Act 1901 the Cleveland and Durham County Electric Power Act 1903 the Cleveland and Durham County Electric Power Act 1913 and this Act may be cited together as the Cleveland and Durham County Electric Power Acts 1901 to 1928. Short title and citation.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Supply in new area of supply.

Act divided into Parts.

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Part III.—Powers and provisions in relation to existing area of supply.

Part IV.—Additional powers in relation to the area of supply and general provisions.

Incorporation of Acts.

3. The following Acts so far as the same are applicable for the purposes of and are not inconsistent with or varied by the provisions of this Act are incorporated with and form part of this Act (that is to say):—

The Lands Clauses Acts except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement.

Interpretation.

4. In this Act the several words terms and expressions to which by the principal Acts or the Acts wholly or partially incorporated herewith meanings are assigned shall have the same respective meanings unless varied by this Act or unless there be something in the subject or context repugnant to that construction And—

“the Company” means the Cleveland and Durham County Electric Power Company who shall for the purposes of this Act be the undertakers within the meaning of the principal Acts;

“the existing area of supply” means the area defined in section 40 (Area of supply) of the Act of 1901 and redefined in the section of this Act of which the marginal note is “Redefinition of existing area of supply”;

“the new area of supply” means the area of supply for the purposes of Part II of this Act as defined by that Part;

“the area of supply” means the existing area of supply and the new area of supply;

“the undertaking” means the undertaking of the Company as authorised from time to time;

“the principal Acts” means the Electricity (Supply) Acts 1882 to 1926 or any one or more of those Acts;

“the Minister” means the Minister of Transport;

“the Commissioners” means the Electricity Commissioners established under the provisions of the Electricity (Supply) Act 1919;

“the existing Acts” means the Cleveland and Durham County Electric Power Acts 1901 to 1913; A.D. 1928. —

“the Act of 1901” “the Act of 1903” and “the Act of 1913” respectively mean the Cleveland and Durham County Electric Power Acts of those respective years;

“the Durham Act of 1909” means the County of Durham Electric Power Supply Act 1909;

“the Newcastle Company” means the Newcastle-upon-Tyne Electric Supply Company Limited;

“the Durham Company” means the County of Durham Electric Power Supply Company.

PART II.

SUPPLY IN NEW AREA OF SUPPLY.

5. This Part of and the schedule to this Act and so much of Part I (Preliminary) and of Part IV (Additional powers in relation to the area of supply and general provisions) of this Act as relates to the supply of electricity by the Company in the new area of supply and the provisions incorporated thereby or applied for the purposes thereof respectively shall be read and construed together as one in relation to the supply of electricity by the Company within the new area of supply. As to construction &c. of Part II of this Act with other enactments.

6. In this Part of this Act—

“authorised to supply electricity” means authorised by Act of Parliament licence Provisional Order confirmed by Parliament or Special or other Order to supply electricity; Meaning of certain expressions in this Part of this Act.

“authorised distributors” means any local authority company body or person authorised to supply electricity within any part of the new area of supply;

“authorised undertakers” means authorised distributors and any authority authorised by any Act of Parliament licence Provisional Order confirmed by Parliament or Special or other Order to undertake or contract for the lighting of streets bridges or public places within any part of the new area of supply;

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“a supply of electricity for power” means and includes a supply of electricity for any purpose other than a supply in bulk and a supply for lighting or general domestic purposes (including office purposes);

“railway company” and “railway” have the same meaning as in the Regulation of Railways Act 1873.

Application
of Electric
Lighting
Acts.

7. This Part of this Act shall be deemed to be a special Act within the meaning of the principal Acts but sections 2 and 3 of the Electric Lighting Act 1888 shall not apply to the undertaking authorised by this Part of this Act or to the Company in respect thereof.

Incorporation of provisions of Electric Lighting (Clauses) Act 1899.

8.—(1) The provisions of the schedule to the Electric Lighting (Clauses) Act 1899 as amended by subsequent Acts (other than the sections and provisions of that schedule which are hereinafter mentioned) so far as the same are applicable for the purposes of and are not inconsistent with or varied by the provisions of this Part of this Act are hereby incorporated with and form part of this Part of this Act.

(2) The provisions of the said schedule so excepted from incorporation are the following (that is to say):—

Section 2 (2) sections 3 to 5 7 to 9 21 to 29 30 (so far as regards a supply to authorised undertakers) 31 to 37 41 to 60 63 to 68 section 69 (3) sections 75 78 83 and 84;

and the said excepted sections and provisions shall not apply to the undertaking authorised by this Part of this Act or to the Company in respect thereof:

Provided that the expression “electric supply company” in section 18 of the said schedule as so incorporated shall include any local authority supplying or using electricity for any purpose and that section shall for the purposes of this Part of this Act be read and apply accordingly.

New area of supply.

9. The area within which the Company may supply electricity under the powers and for the purposes of this Part of this Act shall be—

the urban districts of Filey and Norton the rural district of Norton and the rural district of Eserick (with the exception of the parish of

Thorganby with West Cottingwith) in the A.D. 1928.
administrative county of the east riding of
Yorkshire;

so much of the administrative county of the north
riding of Yorkshire as is not included in the
existing area of supply;

the city of Ripon the borough of Harrogate the
urban district of Knaresborough and the rural
districts of Knaresborough Ripon Pateley Bridge
and Great Ouseburn in the administrative
county of the west riding of Yorkshire;

the city county and county borough of York;

so much of the rural districts of Weardale and
Barnard Castle respectively in the administrative
county of Durham as are not included in the
existing area of supply.

The Company shall within two months after the passing
of this Act deposit at the office of the Commissioners an
Ordnance map on a scale of not less than one inch to the
mile showing the new area of supply and the map shall
be signed by the secretary to the Commissioners.

10. As from the coming into force respectively of the Special Orders intituled the Stokesley Districts Electricity Special Order 1928 and the Wear Valley Electricity Special Order 1928 (for which applications have been made to the Commissioners by the Company) so much of the areas of supply under those Orders respectively as is situate within the new area of supply (in this section referred to as "the excluded areas") shall cease to form part of the new area of supply and this Act shall be read and have effect as if the excluded areas were excluded from the description of the new area of supply in the section of this Act of which the marginal note is "New area of supply" Provided nevertheless that notwithstanding the foregoing provisions of this section or anything in this Act—

As to exclu-
sion of cer-
tain areas
from new
area of
supply in
certain
events.

- (i) the Company may enter upon and break up
and may lay or place electric lines and other
works in under along or across any roads in
the excluded areas for the purposes of affording
supplies of electricity beyond the excluded
areas and the Company shall in respect of any
such roads electric lines and works have for

A.D. 1928.

those purposes the same rights and be subject to the same obligations and liabilities (other than rights obligations and liabilities conferred or imposed upon the Company by this Act in regard to the supply of electricity) as they would have and be subject to if such roads electric lines and works were situate within the new area of supply and such roads were broken up for the purpose of supplying electricity in that area; and

- (ii) the Company and the Newcastle Company shall respectively retain and may exercise in the excluded areas the powers and be subject to the rights obligations and liabilities conferred or imposed upon them respectively by the section of this Act the marginal note of which is "Agreements between Newcastle Company and Company as to supply of electricity &c."

As to route.

11.—(1) Subject to the provisions of this Part of this Act any electric lines laid or placed in or along any street by the Company under this Part of this Act shall be laid or placed in such line or route and in such manner as may be agreed between the Company and the local authority and (where the local authority is not also the road authority) the road authority or as failing agreement shall be settled by the Minister and the Company shall show on the plan of the works to be served on such local authority in accordance with the provisions of the Electric Lighting (Clauses) Act 1899 incorporated with this Part of this Act the route proposed to be taken and the manner in which the electric lines are to be laid or carried:

Provided that where the local authority or road authority object to any proposed line or route on the ground that it would traverse a principal thoroughfare or busy street and indicate an alternative route or deviation which the Company are willing to adopt or which in the opinion of the Minister is both reasonably practicable and does not involve undue increase of expenditure such alternative route or deviation shall be adopted.

- (2) The reasonable and proper costs charges and expenses incurred by any local authority or road authority

in relation to any reference to the Minister under this section shall unless the Minister shall certify that the action of such local authority or road authority in the matter has been unreasonable be paid by the Company. A.D. 1928.

12. The Company shall cause a map to be made showing the line and depth below the surface of the ground of all electric lines laid underground under the powers of this Part of this Act and shall once in every year cause such map to be duly corrected so as to show the then existing lines. The Company shall also if so required by the Commissioners or the Postmaster-General cause to be made sections showing the level of all such electric lines. Subject to the provisions of the section of this Act of which the marginal note is "As to maps" the said map and sections shall be made on such scale or scales as the Commissioners shall prescribe. Every map and section so made or corrected or a copy thereof marked with the date when it was so made or last corrected shall be kept by the Company at their principal office and shall at all reasonable times be open to the inspection of all applicants and such applicants may take copies of the same or any part thereof. The Company may demand and take from every such applicant as aforesaid such fee not exceeding one shilling for each inspection of such map sections or copy and such further fee as they may prescribe not exceeding five shillings for each copy of the same or of any part thereof taken by such applicant. Map of electric lines.

The Company shall if so required by the Commissioners or the Postmaster-General or by the county council of any county or riding or the local authority of any borough or district wholly or partly situate within the new area of supply supply to them or him a copy of such map or sections as aforesaid or if the request is from a county council or local authority a copy of so much of the map or sections as relates to the county or riding of the county council or the district of the authority and when so required cause such copy to be duly corrected so as to agree with the original or originals thereof as kept for the time being at the office of the Company.

If the Company fail to comply with any of the requirements of this section with respect to maps and sections they shall for every such offence be liable to a penalty not exceeding ten pounds and to a daily penalty.

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As to rail-
ways and
tramways.

13. The provisions of section 13 of the Electric Lighting Act 1882 and of section 12 of the schedule to the Electric Lighting (Clauses) Act 1899 shall apply to any tramways or railways within the new area of supply as if the Company were specially authorised to break up or interfere with the same by special powers inserted in this Part of this Act.

Power to
erect tele-
phones &c.

14. The provisions of this Part of this Act and the Acts incorporated therewith shall so far as applicable to the purposes of this section and subject to the necessary modifications apply to the construction laying down erection and maintenance in any streets or roads in the new area of supply of any telephone or telegraph posts wires conductors or apparatus which the Company may and which they are hereby authorised to erect or lay down for the purposes of the undertaking authorised by this Part of this Act but no posts shall be erected under this section in any street or road without the consent of the local authority and (where the local authority is not also the road authority) the road authority which consents shall not be unreasonably withheld and any question whether or not any such consent has been unreasonably withheld shall be determined by the Commissioners :

Provided that the Company shall not exercise the powers of this section in through across or under any road bridge or approach belonging to or maintained by a railway company except with the consent in writing of such company (which consent shall not be unreasonably withheld) and under the superintendence (if given) and to the reasonable satisfaction of the principal engineer of such company and if any difference arises as to whether such consent is unreasonably withheld or whether the requirements of the said principal engineer are reasonable or otherwise such difference shall be referred to an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers.

Principal
powers of
supply in
new area of
supply.

15.—(1) Subject to the limitations stated in the section of this Act of which the marginal note is “Limitation on powers of supply” and subject to the

other provisions of this Part of this Act the Company may supply electricity— A.D. 1928.

- (a) in bulk to any authorised undertakers within the new area of supply;
- (b) for power to any person (other than an authorised undertaker) within the new area of supply;
- (c) for lighting or general domestic purposes (including office purposes) to any person (other than an authorised undertaker) in any part of the new area of supply which at the date of the passing of this Act does not form part of the area of supply of any authorised distributors.

(2) Electricity supplied by the Company at any point within the new area of supply in bulk to any authorised distributors may be used for any purposes of any electricity undertaking of such distributors whether within or without such area.

(3) Electricity supplied by the Company at any point within the new area of supply for power to the owners or lessees of any railway tramway dock harbour water or canal undertaking which is partly within and partly without the new area of supply may be used for any of the following purposes on any part of such undertaking whether within or without the new area of supply (namely):—

- (a) for haulage traction or pumping;
- (b) for lighting vehicles or vessels used on any part of the undertaking; and
- (c) for any purposes for which the Company are for the time being authorised to give a supply of electricity to such owners or lessees under section 47 of the Electricity (Supply) Act 1926;

but nothing in this subsection shall authorise electricity to be used for the purposes of haulage or traction on any railway unless the company body or person owning or working such railway is authorised by Act of Parliament or by an Order confirmed by or having the effect of an Act of Parliament to use electricity for those purposes.

(4) Electricity supplied by the Company at any point within the new area of supply for power to any person (other than the owners or lessees of a railway

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A.D. 1928. — tramway dock harbour water or canal undertaking) may be used for lighting any premises on any part of which the power is utilised and for general domestic purposes (including office purposes) upon such premises.

(5) The Company may supply to any authorised distributors whose area of supply is situate within or partly within the new area of supply electricity for use by such authorised distributors for their own purposes not being purposes of distribution.

Limitation
on powers
of supply.

16.—(1) The Company shall not supply electricity for power under paragraph (b) of subsection (1) of the section of this Act of which the marginal note is "Principal powers of supply in new area of supply" (except to the owners or lessees of a railway tramway dock harbour water or canal undertaking for any of the purposes mentioned in subsection (3) of that section) in any place which at the date of the passing of this Act forms part of the area of supply of any authorised distributors without the consent of those distributors.

(2) The Company shall not supply electricity—

(i) to the owners or lessees of any tramway dock harbour water or canal undertaking situate wholly within the area of supply of any authorised distributors without the consent of those distributors which consent shall not be unreasonably withheld:

Provided that if any question arises as to whether the consent of any authorised distributors is unreasonably withheld that question shall be determined by the Minister and the consent shall be deemed to be unreasonably withheld if the authorised distributors are not willing and in a position to give the requisite supply upon reasonable terms and within a reasonable time and in considering what are reasonable terms and what is a reasonable time the Minister shall amongst other things have regard to the terms upon which and the time within which the Company are willing and in a position to give the supply; or

(ii) to any authority company or person authorised by any Act of Parliament licence Provisional

Order confirmed by Act of Parliament or A.D. 1928.
Special or other Order to undertake or
contract for the lighting of streets bridges
or public places within the area of supply of
any such authorised distributors without
the consent of those distributors.

(3) If at any time after the passing of this Act any local authority company or person (other than the Company) become authorised distributors in any area within the new area of supply which at the date of the passing of this Act does not form part of the area of supply of any authorised distributors the Company shall not thereafter supply electricity in that area for lighting or general domestic purposes (including office purposes) under paragraph (c) of subsection (1) of the section of this Act of which the marginal note is "Principal powers of supply in new area of supply" except to the authorised distributors for the area and except in any individual case in respect of which the consent of such authorised distributors to a supply being given or continued is obtained. Provided that—

- (i) electricity supplied by the Company to any person in the area for power under paragraph (b) of subsection (1) aforesaid may be used by such person for lighting any premises on any part of which the power is utilised and for general domestic purposes (including office purposes) upon such premises; and
- (ii) if at the date when the said local authority company or person become authorised distributors within the area the Company are supplying to the owner or occupier of any premises in the area electricity for lighting and general domestic purposes (including office purposes) by means of works and apparatus not used for the supply of electricity for other purposes the Company may continue to supply electricity to such owner or occupier for the first-mentioned purposes unless and until the authorised distributors shall acquire such works and apparatus from the Company on such terms as may be agreed between the Company and the said local authority company or person or settled by arbitration.

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Supply to
authorised
undertakers.

17. The Company shall upon being required to do so by any authorised undertakers give and continue to give at such point or points within the new area of supply as the authorised undertakers may reasonably require a supply of electricity in bulk at rates not exceeding those stated in Section I of the schedule to this Act and shall furnish and lay such electric lines as may be necessary for the purpose of supplying to such authorised undertakers at such point or points the maximum power with which such authorised undertakers may be entitled to be supplied under this Part of this Act subject to the conditions following (that is to say):—

Any such authorised undertakers requiring a supply of electricity shall—

(a) serve a notice upon the Company specifying the point or points at which such electricity is required to be supplied and the maximum power required to be supplied and the day on which such supply is required to commence (not being an earlier day than a reasonable time after the date of the service of such notice having regard to the situation of the point or points at which such supply is required to be given and to the length of electric line required to be laid and plant required to be provided for affording such supply); and

(b) enter into a written contract with the Company (if required by them so to do) to receive and to continue to receive and pay for a supply of electricity for a period of at least seven years of such an amount that the payment to be made for the same shall not be less than twenty per centum per annum on the outlay incurred by the Company in making provision for such supply:

Provided that any authorised undertakers so requiring a supply of electricity shall give to the Company (if required by them so to do) security for the payment of all moneys which may become due to the Company under such contract:

Provided further that the Company shall not in making any such contract show any undue preference

to any such authorised undertakers within the new area of supply. A.D. 1928.

Any difference which arises under this section shall be determined by arbitration.

18. The Company shall (subject to the provisions of subsection (1) of the section of this Act of which the marginal note is "Limitation on powers of supply") give a supply of electricity for power to any person within the new area of supply (except authorised undertakers or the owners or lessees of a railway tramway dock harbour water or canal undertaking) on that person entering into a binding contract to receive and to continue to receive and pay for a supply of electricity upon such terms and conditions as failing agreement shall be fixed by the Commissioners and in fixing such terms and conditions (including a minimum annual sum to be paid to the Company) the Commissioners shall have regard to the following amongst other considerations :—

Supply to other than authorised undertakers.

- (1) The period for which the person to whom the supply is to be given is prepared to bind himself to take such electricity;
- (2) The amount of electricity and the maximum power required;
- (3) The hours during which the Company can be called upon to give the supply;
- (4) The capital expenditure in connection with the supply;
- (5) How far capital expended in connection with the supply may become unproductive to the Company on the discontinuance of the supply:

Provided that any person so requiring a supply of electricity shall give to the Company (if required by them so to do) security for the payment of all moneys which may become due to the Company under such contract.

19. Whenever the Company make default in supplying electricity to any authorised undertakers to whom they may be required to supply electricity in accordance with the provisions of this Part of this Act they shall be liable to those undertakers in the same penalties as those for which the undertakers are liable under the provisions of their Acts or Orders and the amount of any penalty to be paid by the Company in the case of

Liability for failure to supply.

A.D. 1928. — any such default shall not exceed the amount of any statutory penalties which have been found due and paid by such undertakers in consequence of the default and such undertakers shall have no claim against the Company if the default of the Company arises by reason of accidents which could not have been avoided by reasonable foresight or care or by reason of fire flood storm tempest breakdown of machinery or other casualty or force majeure or labour disputes whether actual or threatened or any other cause for which the Company cannot reasonably be held to be responsible or if the default is of so slight or unimportant a character as not materially to affect the value of the supply.

As to frequency.

20. The Company shall not (save so far as may be permitted under any regulations of the Commissioners for the time being in force) supply electricity within the new area on the alternating current system at any frequency other than fifty cycles per second without the consent of the Commissioners.

Proposals for development in new area of supply.

21.—(1) In this section the expression “the prescribed date” means with respect to any such scheme as is in this section mentioned the date or respective dates on which the Central Electricity Board shall under the provisions of section 4 (Preparation and carrying out of scheme) of the Electricity (Supply) Act 1926 have adopted as respects any area or any part of any area comprised within the new area of supply a scheme or schemes within the meaning of that section providing for the construction laying down or acquisition of main transmission lines required in accordance with any such scheme.

(2) The Company may at any time and shall within six months after the prescribed date and at such other subsequent times at intervals of not less than three years as they may be required to do so by the Commissioners submit to the Commissioners proposals for the development of the supply of electricity for lighting and general domestic purposes (including office purposes) (including in such proposals the provision of any necessary transmission lines or other means of ensuring that a supply of electricity will be available for the purpose of such development) in those parts of the new area of supply which are comprised within the area to which

any such scheme as is referred to in subsection (1) of this section relates and where— A.D. 1928.

- (a) there is a demand for a supply of electricity for those purposes; and
- (b) there is a reasonable prospect of such a supply being remunerative; and
- (c) there are no authorised distributors empowered to provide a supply for those purposes.

(3) The Company shall when submitting any proposals to the Commissioners under subsection (2) of this section serve a copy thereof on every local authority whose district or any part of whose district is situate in the area to which the proposals relate and (where the local authority is not also the road authority) on the road authority and any such local and road authority shall be entitled to make to the Commissioners representations on the proposals within thirty days from such service.

(4) Any proposals submitted by the Company under subsection (2) of this section shall be subject to such modifications or additions as the Commissioners may require and after considering such proposals and any representations of any such local and road authority the Commissioners may by order declare that the area specified in the order (being an area which in the opinion of the Commissioners complies with the conditions (a) and (b) specified in subsection (2) of this section) shall be an area in which the Company shall within such period as the Commissioners may determine lay down distributing mains in the streets specified therein and be subject to all the obligations of the schedule to the Electric Lighting (Clauses) Act 1899 except sections 4 (3) 23 31 to 33 63 to 68 78 83 and 84 of that schedule and the provisions of the said schedule (except as aforesaid) shall be deemed to be incorporated with and form part of the order as if the order were a Special Order made under section 26 of the Electricity (Supply) Act 1919.

For the purposes of such incorporation the following expressions where used in the said provisions shall have the following respective meanings (namely):—

- “the undertakers” shall mean the Company;
- “the Special Order” shall mean the said order of the Commissioners;

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A.D. 1928. "the area of supply" shall mean the area named in the order;

"the commencement of the Special Order" shall mean such date as may be prescribed by the Commissioners in the order;

"general supply" shall mean a general supply for lighting and general domestic purposes (including office purposes);

"a supply of energy" and any like expression shall mean a supply of electricity for lighting and general domestic purposes (including office purposes).

(5) The provisions of the sections of this Act of which the marginal notes respectively are "Limitation on demand for maximum power" and "Inspectors" shall not apply to a supply of electricity for lighting and general domestic purposes (including office purposes) in the area specified in any order made by the Commissioners under subsection (4) of this section or to any mains used exclusively for the purposes of giving such a supply.

(6) If the Company make default in laying down any distributing mains in accordance with the provisions of any order made by the Commissioners under subsection (4) of this section they shall be liable for each default to a penalty not exceeding five pounds for each day during which the default continues and if the Minister is of opinion in any case that the default is wilful and unreasonably prolonged he may after considering any representations of the local authority concerned revoke the powers of the Company to supply electricity for lighting and general domestic purposes (including office purposes) in the area specified in the order or any part thereof.

(7) On the first occasion on which the Company may submit proposals to the Commissioners after the prescribed date under subsection (2) of this section the Company shall submit to the Commissioners for their information a general statement of their scheme—

(a) for the development of the supply of electricity in those parts of the new area of supply in which the Company are empowered to supply electricity for all purposes without the consent of any authorised distributors; and

(b) for the laying or erection of transmission lines in the new area of supply; A.D. 1928.

and the Commissioners may call upon the Company to modify such scheme in such manner as to secure a comprehensive development of the supply throughout the said area.

22. The maximum power with which any authorised undertakers company body or person shall be entitled to be supplied shall be of such amount as they or he may require to be supplied with not exceeding what may be reasonably anticipated as their or his maximum consumption. Limitation on demand for maximum power.

If any difference arises between any such undertakers company body or person and the Company as to what may be reasonably anticipated as their or his maximum consumption the difference shall be determined by arbitration.

23.—(1) Subject to the provisions of this Act the rates to be charged by the Company for electricity supplied by them under the powers of this Part of this Act shall not exceed those respectively stated in that behalf in the schedule to this Act: Stated prices.

Provided that any consumer taking a supply for lighting or general domestic purposes (including office purposes) and not being a consumer taking a supply of electricity in bulk or for power shall be entitled to be charged according to such one of the methods of charge referred to in Section II of the said schedule as he may elect. Provided also that any such consumer who has elected to be or is being charged according to one of the said methods of charge and who desires to be charged according to another of such methods shall not be entitled to be so charged unless he shall have intimated such desire to the Company by not less than three months' notice in writing expiring at the end of one of the quarters mentioned in paragraph (2) of the said Section II.

(2) Nothing in this Act or in the principal Acts shall prevent the Company from making any agreements as provided by this Act and at such prices and on such terms and conditions as may be agreed.

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Revision of
prices.

24. The local authority of any district wholly or partly within the new area of supply or any authorised undertakers supplied by the Company or such number of consumers in any such district not being less than twenty as the Minister considers sufficient having regard to the population of the district or the Company may at any time after the expiration of three years after the passing of this Act make a representation to the Minister that the rates or methods of charge for a supply of electricity authorised by this Act ought to be altered as regards such district or undertakers and on any such representation being made the Minister after such inquiry as he may think fit may make an order varying such rates or methods of charge or substituting other rates or methods of charge and the rates or methods of charge so varied or substituted shall as regards such district or undertakers have effect on and after such day as may be mentioned in the order as if they had been stated in this Part of this Act Provided that the rates and methods of charge for the time being in force may be altered in like manner at any time after the expiration of any or every period of three years after they were last altered :

Provided also that the rates and methods of charge for a supply of electricity for lighting and general domestic purposes (including office purposes) within the area specified in any order made by the Commissioners under subsection (4) of the section of this Act of which the marginal note is "Proposals for development in new area of supply" shall not be altered under this section before the expiration of three years after the expiration of the period for the completion of the laying down of distribution mains prescribed by the Commissioners in the order.

Bulk
supplies.

25. The Company on the one hand and any local authority company body or person authorised to supply electricity within the new area of supply on the other hand may enter into and carry into effect agreements for the supply of electricity in bulk by or to the Company to or by such authority company body or person and the provisions of the respective Acts and Orders under which such authority company body or person may be empowered to supply electricity shall so far as applicable have effect within the area of supply of such authority

company body or person for the purposes of a supply to be afforded under this section : A.D. 1928.

Provided that except with the approval of the Commissioners (which approval the Commissioners are hereby authorised to give) no agreement shall be entered into under this section with any authority company body or person authorised to supply electricity within the new area of supply (other than the Northern Counties Electricity Supply Company Limited) if the agreement is for the supply of electricity in bulk to the Company for a period extending beyond or commencing after the expiration of seven years from the passing of this Act.

26.—(1) In relation to and for the purposes of the supply of electricity by the Company within the new area of supply and the undertaking of the Company authorised by this Part of this Act it shall be lawful for the Newcastle Company on the one hand and the Company on the other hand to enter into and carry into effect agreements for all or any of the following purposes (namely) :— Agreements between Newcastle Company and Company as to supply of electricity &c.

- (a) for connecting or linking up the generating stations and sub-stations for the time being belonging to either of the said companies with each other;
- (b) for the supply of electricity by the said companies to each other; and
- (c) for the laying down construction and maintenance of electric mains by the Newcastle Company for the purposes of any such agreement and the sale or transfer of any such mains.

(2) In relation to the laying down or maintenance of electric mains for the purposes of carrying into effect any agreement authorised under subsection (1) of this section the Newcastle Company shall with respect to streets bridges railways tramways land trees and hedges not within the area which the Newcastle Company is authorised to supply have (subject to the provisions of this section) the powers and be subject to the provisions of the Electric Lighting Act 1882 of sections 10 to 20 60 to 62 69 to 73 76 77 and 79 to 82 of the schedule to the Electric Lighting (Clauses) Act 1899 of section 22 of the Electricity (Supply) Act 1919 and of section 34 of the Electricity (Supply) Act 1926 as respectively amended

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A.D. 1928. — by subsequent enactments and those provisions (so far as applicable but subject to the provisions of this section) shall be incorporated with this section and shall have effect and the Newcastle Company shall be deemed to be the undertakers :

Provided that the provisions of section 13 of the Electric Lighting Act 1882 and of section 12 of the schedule to the Electric Lighting (Clauses) Act 1899 shall apply to any tramways or railways as if the Newcastle Company were specially authorised to break up or interfere with the same by special powers inserted in this section.

(3) Any electric main laid down under the powers of this section shall be laid or placed in such line or route and in such manner as may be agreed between the Newcastle Company and the local authority of the district through which such main is to be laid or as failing agreement shall be settled by the Minister and where any local authority object to any proposed line or route on the ground that it would traverse a principal thoroughfare or busy street and indicate an alternative route or deviation within the district of such local authority which the Company are willing to adopt or which in the opinion of the Minister is both reasonably practicable and does not involve undue increase of expenditure such alternative route or deviation shall be adopted.

(4) The reasonable and proper costs charges and expenses incurred by any local authority in relation to any reference to the Minister under this section shall unless the Minister shall certify that the action of such local authority in the matter has been unreasonable be paid by the Newcastle Company.

(5) The map and sections which the Newcastle Company is or may be required to make in accordance with section 60 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be a map or maps of so much of the district or districts traversed by any main or mains laid down under the powers of this section as may be necessary to show the course of such main or mains and a section or sections showing the level of such main or mains.

(6) Except in so far as is provided by this section the Newcastle Company and the Company shall remain

and be subject to all and the same obligations and liabilities to all persons not being parties to any agreement entered into between the said companies under the provisions of this section as they would have been subject to if such agreement had not been entered into. A.D. 1928.

(7) In this section the expression "electric main" means all cables and overhead lines (together with any step-up and step-down transformers and switchgear necessary to and used for the control of such cables and lines and the buildings required to accommodate such transformers and switchgear) and all works and apparatus incidental thereto which are necessary for the purposes of carrying into effect any agreement authorised under subsection (1) of this section.

(8) Nothing in this section shall authorise the laying down construction maintenance or use of electric mains—

(i) by the Newcastle Company in any district or districts not comprised within either—

(a) the area of supply of the Durham Company as defined in section 5 (Limits of Act) of the County of Durham Electric Power Supply Act 1900; or

(b) the area of supply as defined in section 4 (Interpretation) of this Act; or

(ii) by the Company in any district or districts not comprised within the area of supply as so defined as aforesaid; or

(iii) by the Newcastle Company or the Company within the city county and county borough of York the city of Ripon the county boroughs of Darlington and West Hartlepool or the boroughs of Harrogate and Stockton-on-Tees as respectively constituted at the date of the passing of this Act without the consent in writing in the case of the said city county and county borough of York of the lord mayor aldermen and citizens of the said city in the case of the said city of Ripon of the mayor aldermen and citizens of the said city and in the case of the said other county boroughs and boroughs respectively of the mayor aldermen and burgesses thereof under their respective common seals.

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(9) No agreement relative to the purposes described in paragraphs (a) and (c) of subsection (1) of this section shall be entered into under this section between the Newcastle Company and the Company except with approval of the Commissioners which approval the Commissioners are hereby authorised to give.

Agreements
for supply
of electri-
city.

27. Notwithstanding anything in the principal Acts or this Part of this Act the Company on the one hand and any authority company body or person (other than any authorised distributors) to whom the Company are under this Part of this Act authorised to supply electricity on the other hand may enter into and carry into effect contracts or agreements for or with respect to the supply of electricity by the Company to such authority company body or person and at such price and on such terms and conditions as may be agreed and the Company may supply electricity accordingly:

Provided that the Company shall not in making any such contract or agreement show any undue preference to any such authority company body or person.

Supply of
electricity
by agree-
ment.

28. A consumer (other than any authorised undertakers) supplied with electricity by the Company under the terms of any agreement shall be deemed to be a person to whom the Company may be and are required to supply electricity within the meaning of section 30 of the schedule to the Electric Lighting (Clauses) Act 1899 and the provisions of that section shall apply to the supply afforded by the Company under such agreement unless the provisions of that section are expressly excluded from application in the agreement. If the Company fail to supply electricity to such consumer they shall not be liable for any damages occasioned to such consumer by reason of such failure unless the same is caused by or in consequence of the wilful neglect or default of the Company.

Transfer of
under-
takings of
other under-
takers to
Company.

29.—(1) The Company may by agreement (but not otherwise) acquire from any local authority or other undertakers to whom a Provisional or Special or other Order under the principal Acts shall have been or may be granted relating to a district or place within or partly within the new area of supply the undertaking authorised by such Order and the powers rights authorities and

privileges of the undertakers thereunder and the undertakers under any such Order which shall have been confirmed or approved by Parliament prior to the passing of this Act may with the approval of the Commissioners by deed approved by the Commissioners (which approval the Commissioners are hereby authorised to give) transfer such undertaking powers rights authorities and privileges to the Company subject to such exceptions and modifications (if any) and on such terms and conditions as may be specified in the deed and if the Company so acquire any such undertaking they shall (subject to such modifications and exceptions as aforesaid) be deemed to be the undertakers for all the purposes of the Provisional or Special or other Order the powers of which are so transferred Provided that—

A.D. 1928.
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- (a) In the case of any Provisional Order granted prior to the year nineteen hundred the provisions of the schedule to the Electric Lighting (Clauses) Act 1899 as amended by subsequent Acts shall from and after such transfer be deemed to have been incorporated with such Order and shall control and supersede such of the provisions of that Order as are at variance or inconsistent therewith;
- (b) If any such undertaking is acquired by the Company under this section the provisions of the principal Acts shall subject to any modification of those Acts made by any such Order apply to that undertaking;
- (c) If the undertakers for any undertaking so acquired by the Company are a local authority the undertaking shall be deemed to be subject to the provisions of section 2 of the Electric Lighting Act 1888 Provided that the periods at which the local authority may under the provisions of the said section re-purchase such undertaking or so much thereof as is within their jurisdiction shall be reckoned from the date of the acquisition thereof by the Company;
- (d) None of the provisions of any such Order or of the principal Acts shall extend to authorise the re-purchase by any local authority of any generating station or other works of the Company which are not mainly used or required for the

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purposes of supplying electricity under such Order within the area defined by such Order;

(e) The powers conferred by this section may be exercised in respect of part only of any such undertaking or part only of any such powers rights authorities and privileges as aforesaid.

(2) References in this section to a Provisional or Special Order shall be deemed to include references to any Act or Acts of Parliament relating to the undertaking or powers rights authorities and privileges to be transferred.

(3) Any capital moneys received by any local authority in respect of any transfer under this section shall be applied by such authority in manner provided by paragraph (2) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

Acquisition
sale &c.
of generat-
ing stations
&c. by
agreement.

30.—(1) The Company may by agreement purchase take on lease or otherwise acquire work use maintain alter and improve any generating station or sub-station and the works connected therewith or incidental thereto belonging to any local authority or other undertakers authorised to supply electricity in any area within or partly within and partly without the new area of supply and may sell or otherwise dispose of or discontinue the working and use of any such generating station or sub-station so acquired and any such undertakers may transfer any such generating station sub-station and works together with their powers rights authorities and privileges in connection therewith or incidental thereto to the Company on such terms as may be agreed.

(2) If the Company so acquire any such generating station sub-station or works powers rights authorities and privileges they may for the purpose of carrying on maintaining and working any such generating station sub-station or works so transferred to them exercise all the powers rights authorities and privileges so transferred to them and any generating station sub-station or works transferred to the Company under this section or any works executed by them under any powers so transferred to them shall be deemed to form part of the undertaking of the Company authorised by this Part of this Act.

(3) Nothing in this section shall exonerate the Company from any indictment action or other proceeding

for nuisance if any nuisance is caused or permitted by the Company on any land on which any such generating station or sub-station is situated and for which nuisance any such undertakers as aforesaid would have been liable if caused by them. A.D. 1928.

(4) Nothing in this section shall authorise the Company to acquire any powers rights and privileges of any undertakers with respect to the supply of electricity nor shall anything in this section authorise the Company to purchase or take on lease (other than a lease for a term ending before the expiration of seven years from the passing of this Act) any generating station or main transmission line except with the consent of the Commissioners.

(5) If any generating station acquired by the Company under the provisions of this section is or shall become a selected station for the purposes of a scheme under the Electricity (Supply) Act 1926 then in construing section 13 of that Act such station shall be deemed to be an existing generating station only to the extent to which the Company are supplied by the Central Electricity Board for the purposes of the undertaking of which the station formed part immediately before the date of its acquisition by the Company.

31. The Company and any local authority or other undertakers authorised to supply electricity in any area within or partly within and partly without the new area of supply may with the approval of the Commissioners enter into and carry into effect agreements and arrangements for and with respect to the management by the Company of the whole or part of the undertaking or any generating station sub-station or other works of such undertakers upon and subject to such terms and conditions as may be agreed between the Company and such undertakers. Power to manage undertakings or works of other undertakers.

32. The provisions of section 4 (Power to Company to supply fittings &c.) and section 5 (Exemption of fittings &c. let on hire by contractors from distress) of the Act of 1913 and so much of section 2 (Interpretation) of that Act as relates to those sections shall extend and apply in relation to the undertaking authorised by this Part of this Act as if those provisions had been re-enacted in this Part of this Act with reference thereto; Application of certain sections of Act of 1913.

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A.D. 1928:

— Provided that the Company shall not exercise the powers conferred by this section within the city county and county borough of York the city of Ripon or the borough of Harrogate as respectively constituted at the date of the passing of this Act without the consent in writing in the case of the said city county and county borough of York of the lord mayor aldermen and citizens of the said city in the case of the said city of Ripon of the mayor aldermen and citizens of the said city and in the case of the said borough of Harrogate of the mayor aldermen and burgesses of the said borough under their respective common seals.

For protec-
tion of
Postmaster-
General.

33.—(1) Any electricity supplied under this Part of this Act to the owners or lessees of any railway tramway dock harbour water or canal undertaking shall not be used by the company body or person receiving such supply in such manner as to cause or be likely to cause any interference (whether by induction or otherwise) with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of such line. But this provision shall not apply to an undertaking or part thereof in respect of which any company body or person is authorised to use electricity by Act of Parliament or by Order confirmed by or having the effect of an Act of Parliament containing provisions for the protection of the telegraphic lines of the Postmaster-General in respect of the use of electricity.

(2) Nothing in the sections of this Act of which the marginal notes are respectively “As to route” and “Agreements between Newcastle Company and Company as to supply of electricity &c.” shall take away or prejudicially affect the rights of the Postmaster-General under section 14 of the schedule to the Electric Lighting (Clauses) Act 1899 and the provisions of that section shall apply in respect of any alternative route or deviation adopted under those sections.

(3) Any telephone or telegraph posts wires conductors or apparatus erected or laid down by the Company under the authority of this Act shall not (except with the written consent of the Postmaster-General) be used for the purpose of transmitting telegrams which are within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

(4) The Company shall not construct any telephone or telegraph posts wires conductors or apparatus which shall interfere in any way with any telegraphic line belonging to or used by the Postmaster-General and the Company shall within forty-eight hours of the service on them of a notice in writing by the Postmaster-General in that behalf remove or alter to the satisfaction of the Postmaster-General any such telephone or telegraph posts wires conductors or apparatus as aforesaid which in the opinion of the Postmaster-General interfere or will interfere with the efficient or convenient maintaining working or user of any telegraphic line which the Postmaster-General has constructed or desires to construct and in default of such removal or alteration as aforesaid the Postmaster-General may remove or alter any such telephone or telegraph posts wires conductors or apparatus as aforesaid at the expense of the Company.

A.D. 1928.
—

(5) "Telegraphic line" in this section has the same meaning as in the Telegraph Act 1878.

34.—(1) If within three years from the passing of this Act the Company have not in the opinion of the Commissioners substantially commenced their works for the purpose of carrying out their powers under this Part of this Act the Minister may order that the powers of the Company under this Part of this Act with respect to the supply of electricity in bulk and for power shall cease as to the whole or any part of the new area of supply and on any such Order being made those powers shall cease accordingly.

Cesser of
powers.

(2) At any time after the expiration of ten years from the date on which the main transmission lines referred to in subsection (1) of the section of this Act of which the marginal note is "Proposals for development in new area of supply" shall have become available and suitable for use within the new area of supply the Minister may by order direct that all or any of the powers of the Company under this Part of this Act shall cease as regards any part of the new area of supply (being a part which complies with the condition (c) specified in subsection (2) of the said section and also in the opinion of the Commissioners with the conditions (a) and (b) specified in that subsection) in which the Company shall not at the date of such order be affording for all purposes or be prepared to afford for all purposes (in each case to the satisfaction

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A.D. 1928. of the Minister) an adequate supply of electricity and on any such order being made such powers shall cease accordingly.

As to purchase of undertaking authorised by this Part of this Act.

35.—(1) Subject as hereinafter provided the purchasing authority (as hereinafter defined) may within six months after the expiration of a period of fifty years from the date of the passing of this Act and within six months after the expiration of every subsequent period of ten years by notice in writing require the Company to sell and thereupon the Company shall sell to them the undertaking authorised by this Part of this Act on terms of payment to the Company of a sum equal to the capital properly expended for the provision of the land buildings works material and plant of the Company in use or available and suitable for use at the time of the purchase for the purposes of the said undertaking less depreciation according to such scale as may have been prescribed by a Special Order made in pursuance of paragraph (a) of subsection (1) of section 39 of the Electricity (Supply) Act 1926 :

Provided that if at the date of the giving by the purchasing authority of any such notice as aforesaid there is within the new area of supply any electric main belonging to the Newcastle Company which shall have been constructed for the purpose of the supply of electricity to the Company then (unless otherwise agreed between the Newcastle Company and the purchasing authority) the purchasing authority shall purchase and the Newcastle Company shall sell the said electric main on terms of the payment to the Newcastle Company of a sum equal to the capital properly expended for the provision of the same as in use or available and suitable for use at the time of purchase for the purposes of the undertaking authorised by this Part of this Act less depreciation according to such scale as may have been prescribed by a Special Order made as aforesaid.

(2) The said purchase from the Company shall take effect from the date on which the purchase consideration is paid to the Company or on such other date as may be agreed between the Company and the purchasing authority and as from that date all land buildings works material and plant so purchased shall vest in the purchasing authority freed from all debts mortgages or similar obligations of the Company or attached to the said

undertaking and the powers of the Company in relation to the supply of electricity under this Part of this Act shall absolutely cease and determine and shall vest in the purchasing authority. A.D. 1928.

(3) Any such purchase from the Newcastle Company of any electric main as aforesaid by the purchasing authority shall take effect from the date on which the purchase consideration is paid to the Newcastle Company or on such other date as may be agreed between the Newcastle Company and the purchasing authority and as from that date the said electric main so purchased shall vest in the purchasing authority freed from all debts mortgages or similar obligations of the Newcastle Company or attached to the said electric main and the powers of the Newcastle Company over or in respect of the use of the same shall absolutely cease and determine and shall vest in the purchasing authority.

(4) Subject to the foregoing provisions of this section the Minister shall determine any questions which may arise in relation to the said purchase or purchases.

(5) For the purposes of this section the purchasing authority—

(i) if at the date of purchase the new area of supply is situate wholly or mainly within the district of a joint electricity authority shall be the joint electricity authority. Provided that if at the said date the new area of supply is situate partly within the district of one joint electricity authority and partly in that of another the right of purchase shall be exercised by such one of those authorities or shall be divisible between them as the Commissioners shall determine;

(ii) if at the date of purchase the new area of supply is not situate wholly or mainly within the district of a joint electricity authority shall be either—

(a) the local authorities for the districts wholly or partly situate within the new area of supply acting through a joint committee or joint board constituted under section 8 of the Electric Lighting Act 1909; or

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(b) some other public body duly authorised by Parliament to purchase the said undertaking;

as the Minister may determine:

Provided that in any event the whole undertaking shall be purchased at one and the same time.

(6) In this section the expression "electric main" means all cables and overhead lines (together with any step-up and step-down transformers and switchgear necessary to and used for the control of such cables and lines and the buildings required to accommodate such transformers and switchgear) and all works and apparatus incidental thereto which are necessary for the purposes of carrying into effect any agreement authorised under subsection (1) of the section of this Act of which the marginal note is "Agreements between Newcastle Company and Company as to supply of electricity &c."

Accounts
relative to
undertaking
authorised
by this Part
of this Act.

36. The Company shall include in the annual statement of account made up by them in accordance with the provisions of section 11 (Accounts) of the Act of 1913 a separate statement of the accounts of the undertaking authorised by this Part of this Act. Such statement shall be made in such form and shall contain such particulars as the Commissioners may from time to time prescribe and the provisions of section 9 of the Electric Lighting Act 1882 (relating to the publication of accounts and the keeping and sale of copies thereof) and of section 6 (relating to audit of undertakers' accounts) of the schedule to the Electric Lighting (Clauses) Act 1899 shall extend and apply to each such statement of account.

Inspectors.

37.—(1) The Minister on the application of any authorised undertakers or persons supplied with electricity by the Company under the powers of this Part of this Act may appoint and keep appointed one or more competent and impartial persons to be electrical inspectors under this Part of this Act and the Minister may prescribe the fees to be taken by any such inspector and the mode of application thereof and those fees shall be accounted for and applied as may be directed by the Minister.

(2) The Company shall whenever reasonably required by any local authority through whose district any trunk main is laid test and furnish a record of the testing

of any main of the Company passing through their district or if necessary that portion of the main within their district and if the Company fail to comply with the provisions of this subsection any such local authority may apply to the Minister to appoint an inspector for the purpose of testing such main and the foregoing provisions of this section shall apply to the appointment of such inspector and the Company shall pay the cost of such testing. A.D. 1928.

38. It shall not be obligatory upon the Company in cases in which they are required under any of the provisions of this Part of this Act or under any enactments incorporated therewith or applied thereby to deposit or supply maps or cause the same to be made to deposit supply or cause to be made maps so mounted or arranged as to form one complete map but it shall be sufficient that the same consist of separate sheets. As to maps.

39. For the purposes of this Part of this Act—

- (a) the area of supply under any Special Order which comes into operation after the passing of this Act and for which application was made not later than the nineteenth day of November one thousand nine hundred and twenty-seven; and
- (b) any area which may be added to the area of supply of the mayor aldermen and burgesses of the borough of Harrogate or of the Whitby Urban District Council or of the lord mayor aldermen and citizens of the city of York by any Special Order made confirmed and approved in pursuance of the applications made by them respectively to the Electricity Commissioners in the months of February April and May one thousand nine hundred and twenty-eight;

For protec-
tion of
applicants
for pending
Special
Orders.

shall be deemed to have been at the date of the passing of this Act the areas of supply of the authorised distributors to whom such Orders were respectively granted :

Provided that the Company shall be entitled to oppose the making confirmation or approval of the Special Orders referred to in the foregoing paragraph (b) or any of those Orders.

A.D. 1928.

For protec-
tion of
applicants
for certain
pending
Special
Orders.

40. If any of the Special Orders for which applica-
tion was made to the Commissioners under the titles
hereunder mentioned shall be made by the Commis-
sioners and confirmed by the Minister of Transport and
approved by Parliament before the first day of January
nineteen hundred and thirty then the area of supply
defined in the Order as so approved shall be deemed
to have been at the date of the passing of this Act
the area of supply of the authorised distributors to
whom such Orders were respectively granted Provided
that the Company shall be entitled to oppose the making
confirmation or approval of the said Special Orders or
any of them.

The titles of the Special Orders above referred to
are :—

The Hawes Electricity Special Order 1928.

The Askrigg and Reeth Electricity Special Order
1928.

The Easingwold and District Electricity Special
Order 1928.

As to supply
to autho-
rised dis-
tributors
within new
area of
supply.

41. Notwithstanding anything contained in this
Part of this Act the Company shall not supply electricity
to any authorised distributors without the consent of
the Central Electricity Board and notwithstanding
anything contained in this Act or the Electricity
(Supply) Acts 1882 to 1926 the Central Electricity Board
may (in any case in which the Board do not consent to
such supply of electricity by the Company to any such
authorised distributors) themselves supply electricity
directly to such authorised distributors without the
consent of the Company.

PART III.

POWERS AND PROVISIONS IN RELATION TO EXISTING AREA OF SUPPLY.

As to con-
struction
&c. of
Part III of
this Act
with other
enactments.

42. The existing Acts and this Part of this Act and
the schedule to this Act (as applied for the purposes of
the section of this Act of which the marginal note is
“ Additional powers of supply in existing area of supply ”)
and so much of Part I (Preliminary) and of Part IV
(Additional powers in relation to the area of supply and
general provisions) of this Act as relates to the supply of

electricity by the Company in the existing area of supply and the provisions incorporated therewith or applied for the purposes thereof respectively shall be read and construed together as one in relation to the supply of electricity by the Company within the existing area of supply. A.D. 1928.
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43. The existing area of supply shall be the area defined in section 40 (Area of supply) of the Act of 1901 as redefined in this section (namely):—

Redefinition
 of existing
 area of
 supply.

The county boroughs of Darlington and West Hartlepool:

In the administrative county of Durham—

The boroughs of Hartlepool and Stockton-on-Tees;

The urban districts of Annfield Plain Barnard Castle Benfieldside Billingham Bishop Auckland Brandon and Byshottles Consett Crook Leadgate Spennymoor Shildon Stanley Tanfield Tow Law and Willington;

The rural district of Auckland the rural district of Barnard Castle except the parishes or townships of Egglestone Middleton-in-Teesdale Newbiggin and Forest and Frith the rural districts of Darlington Hartlepool Lanchester Sedgefield and Stockton;

The parishes or townships of Béarpark Broom Brancepeth Shadforth Cassop-cum-Quarrington Coxhoe Hett and Sunderland Bridge in the rural district of Durham;

The parishes or townships of Coldhesledon Haswell East Murton Easington with Thorpe Hawthorne Shotton Castle Eden Monk Hesledon Kelloe Thornley Hutton Henry Sheraton and Hulam Nesbitt and Wingate in the rural district of Easington;

The parish of Wolsingham (including Wolsingham Park Moor) in the rural district of Weardale:

In the administrative county of the north riding of Yorkshire—

The boroughs of Redcar and 'Thornaby-on-Tees;

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The urban districts of Eston Guisborough Loftus Saltburn-by-the-Sea and Skelton and Brotton;

The rural district of Guisborough except the parishes or townships of Comondale Danby and Westerdale;

The rural district of Middlesbrough;

The parishes or townships of Nunthorpe Yarm Great Ayton Little Ayton Stokesley Newby Seamer Rudby Middleton-upon-Leven Skutterskelfe Hilton Sexhow Castle Leavington Kirk Leavington Low Worsall Picton Crathorne High Worsall Hutton Rudby and East Rounton in the rural district of Stokesley;

The county borough of Middlesbrough:

as such county boroughs boroughs urban districts rural districts parishes or townships were respectively constituted upon the nineteenth day of November one thousand nine hundred and twenty-seven.

The Company shall within two months after the passing of this Act deposit at the office of the Commissioners an Ordnance map on a scale of not less than one inch to the mile showing the existing area of supply and the map shall be signed by the secretary to the Commissioners.

As to supply to lighting authorities in existing area of supply.

44. The Company may supply electricity in bulk to lighting authorities as defined in section 36 of the Electricity (Supply) Act 1919 within the existing area of supply. Provided that the Company shall not supply electricity to any such lighting authority within the area of supply of any authorised distributors without the consent of those distributors.

Amendment of section 54 of Act of 1901.

45. Section 54 (Conditions affecting supply) of the Act of 1901 shall be read and have effect as if the following paragraph were substituted for paragraph (2) of that section (that is to say):—

“(2) (i) The energy supplied to authorised distributors may be used for lighting or other purposes and the energy supplied to any person

for power may be used by such person for lighting any premises on any part of which the power is utilised and also for general domestic purposes (including office purposes) upon the said premises; A.D. 1928.

(ii) When energy is supplied to any person for power within the area of supply of any authorised distributors the energy used by such person for lighting and for general domestic purposes (including office purposes) shall not in any year except with the consent in writing of the authorised distributors exceed fifty per centum of the total amount of energy supplied to such person;

(iii) On any premises on which the installation for power purposes does not exceed ten horse-power any electrical energy used by a person for lighting such premises shall be supplied only through a separate meter and the authorised distributors of the area in which the supply of electrical energy for power and lighting purposes is given may once in every year inspect the meters and the Company shall at the request in writing of such authorised distributors produce the meter readings for their inspection and shall if required in writing to do so verify the same;

(iv) If any person supplied by the Company with electrical energy shall use the same for lighting purposes contrary to the provisions of this section the Company shall upon becoming aware thereof and if so required in writing by such authorised distributors discontinue the supply for lighting purposes;

(v) If the Company fail to discontinue the supply when so required in writing as aforesaid they shall for every such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and such penalty may be recovered by the authorised distributors within whose area of supply such contravention occurs;

A.D. 1928.

And save as aforesaid the Company shall not supply energy for lighting or general domestic purposes (including office purposes)."

As to agreements &c. between Newcastle Company and Company for supply of electricity.

46. The Newcastle Company on the one hand and the Company on the other hand shall have power and shall be deemed at all material times to have had power under the provisions of the Acts conferring powers upon those companies respectively to enter into and carry into effect contracts and agreements with each other for the supply by the Newcastle Company to the Company of electricity for all or any of the purposes of the undertaking of the Company within the existing area of supply and by the Company to the Newcastle Company for all or any of the purposes of the undertaking of the Newcastle Company.

Additional powers of supply in existing area of supply.

47.—(1) In addition and without prejudice to the other powers of the Company under the existing Acts and this Act with respect to the supply of electricity within the existing area of supply and anything contained in the existing Acts to the contrary notwithstanding the Company may supply electricity for lighting and general domestic purposes (including office purposes) to any person in any part of the existing area of supply which at the date of the passing of this Act does not form part of the area of supply of any authorised distributors (including the Company under the Provisional and Special Orders by virtue of which they are at the said date authorised to supply electricity within parts of the existing area of supply).

(2). For the purposes of this section the Company shall have and may exercise with respect to the breaking up of streets railways and tramways and the laying of electric lines and (subject as hereinafter provided) with respect to all other matters incidental to the exercise of the powers of this section the powers of the existing Acts and of so much of this Act as relates to the existing area of supply:

Provided that the Company shall not for the purposes and under the powers of this section—

(a) lay any electric lines within the county borough of West Hartlepool as constituted at the date of the passing of this Act without the consent in writing of the mayor aldermen and burgesses thereof under their common seal; or

(b) lay any electric lines—

A.D. 1928.

(i) within the borough of Stockton-on-Tees along Bridge Road High Street or so much of Norton Road as is south of the point at which the railway of the London and North Eastern Railway Company crosses the said Norton Road near Railway Street; or

(ii) within the said borough across High Street or Norton Road south of the junction of Garbutt Street and Norton Road except at such points (not to be more than two in number) as the Company may select or as in case of difference may be determined by the Commissioners;

without the consent in writing of the mayor aldermen and burgesses of the said borough under their common seal.

(3) Subject to the provisions of this section the rates to be charged by the Company for electricity supplied by them under the powers of this section shall not exceed those respectively stated in that behalf in Section II of the schedule to this Act.

(4) Any consumer taking a supply under this section shall be entitled to be charged according to such one of the methods of charge referred to in Section II of the said schedule as he may select and any such consumer who has elected to be or is being charged according to one of the said methods of charge and who desires to be charged according to another of such methods shall not be entitled to be so charged unless he shall have intimated such desire to the Company by not less than three months' notice in writing expiring at the end of one of the quarters mentioned in paragraph (2) of the said Section II.

(5) Nothing in this Part of this Act or in the enactments with which the same is to be read and construed or in any order made by the Commissioners under subsection (4) of the section of this Act of which the marginal note is "Proposals for development in existing area of supply" shall prevent the Company from supplying electricity to any person whom the Company is authorised to supply under this section at such price and on such terms and conditions as may be agreed.

A.D. 1928. — between the Company and such person but the Company shall not in making any such agreement show any undue preference to any such person.

(6) If at any time after the passing of this Act any local authority company or person (other than the Company) become authorised distributors in any area within the existing area of supply which at the date of the passing of this Act does not form part of the area of supply of any authorised distributors the Company shall not thereafter supply electricity in that area for lighting or general domestic purposes (including office purposes) under subsection (1) of this section except to the authorised distributors for the area and except in any individual case in respect of which the consent of such authorised distributors to a supply being given or continued is obtained. Provided that—

(i) electricity supplied by the Company to any person in the area for power under the existing Acts as amended by this Act may be used by such person for any purpose permitted under those Acts;

(ii) if at the date when the said local authority company or person become authorised distributors within the area the Company are supplying to the owner or occupier of any premises in the area electricity for lighting and general domestic purposes (including office purposes) by means of works and apparatus not used for the supply of electricity for other purposes the Company may continue to supply electricity to such owner or occupier for the first mentioned purposes unless and until the authorised distributors shall acquire such works and apparatus from the Company on such terms as may be agreed between the Company or person or settled by arbitration.

Proposals
for develop-
ment in
existing
area of
supply.

48.—(1) In this section the expression “the prescribed date.” means with respect to any such scheme as is in this section mentioned the date or respective dates on which the Central Electricity Board shall under the provisions of section 4 (Preparation and carrying out of scheme) of the Electricity (Supply) Act 1926 have adopted as respects any area or any part of any area

comprised within the existing area of supply a scheme or schemes within the meaning of that section providing for the construction laying down or acquisition of main transmission lines required in accordance with any such scheme. A.D. 1928.

(2) The Company may at any time and shall within six months after the prescribed date and at such other subsequent times at intervals of not less than three years as they may be required to do so by the Commissioners submit to the Commissioners proposals for the development of the supply of electricity for lighting and general domestic purposes (including office purposes) in those parts of the existing area of supply which are comprised within the area to which any such scheme as is referred to in subsection (1) of this section relates and where—

- (a) there is a demand for a supply of electricity for those purposes; and
- (b) there is a reasonable prospect of such a supply being remunerative; and
- (c) there are no authorised distributors empowered to provide a supply for those purposes.

(3) The Company shall when submitting any proposals to the Commissioners under subsection (2) of this section serve a copy thereof on every local authority whose district or any part of whose district is situate in the area to which the proposals relate and (where the local authority is not also the road authority) on the road authority and any such local and road authority shall be entitled to make to the Commissioners representations on the proposals within thirty days from such service.

(4) Any proposals submitted by the Company under subsection (2) of this section shall (subject as hereinafter provided) be subject to such modifications or additions as the Commissioners may require and after considering such proposals and any representations of any such local and road authority the Commissioners may by order declare that the area specified in the order (being an area which in the opinion of the Commissioners complies with the conditions (a) and (b) mentioned in subsection (2) of this section) shall be an area in which the Company shall within such period as the Commissioners may

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A.D. 1928. — determine (not being earlier than the expiration of one year from the date on which the main transmission lines constructed laid down or acquired by the Central Electricity Board as aforesaid shall have become available and suitable for use unless the Company agree to an earlier date) lay down distributing mains in the streets specified therein and be subject to all the obligations of the schedule to the Electric Lighting (Clauses) Act 1899 except sections 4 (3) 23 31 to 33 63 to 68 78 83 and 84 of that schedule and the provisions of the said schedule (except as aforesaid) shall be deemed to be incorporated with and form part of the order as if the order were a Special Order made under section 26 of the Electricity (Supply) Act 1919.

The provisions of sections 2 and 3 of the Electric Lighting Act 1888 shall apply in respect of the distribution undertaking authorised by an order made by the Commissioners under this subsection provided that notwithstanding anything contained in the said sections 2 and 3 or either of them the period of forty-two years after the expiration of which a local authority may purchase compulsorily so much of any such undertaking as aforesaid as is within their jurisdiction shall be calculated from the date of the commencement of the said order.

For the purposes of such incorporation as aforesaid the following expressions where used in the said provisions shall have the following respective meanings (namely) :—

- “ the undertakers ” shall mean the Company;
- “ the Special Order ” shall mean the said order of the Commissioners;
- “ the area of supply ” shall mean the area named in the order;
- “ the commencement of the Special Order ” shall mean such date as may be prescribed by the Commissioners in the order;
- “ general supply ” shall mean a general supply for lighting and general domestic purposes (including office purposes);
- “ a supply of energy ” and any like expression shall mean a supply of electricity for lighting and general domestic purposes (including office purposes).

(5) The rates and methods of charge for a supply of electricity for lighting and general domestic purposes (including office purposes) within the area specified in any order made by the Commissioners under subsection (4) of this section shall not be altered under the provisions substituted by section 22 (Methods of charging and revision of prices) of the Electricity (Supply) Act 1922 for the provisions of section 64 (Revision of prices &c.) of the Act of 1901 before the expiration of three years after the expiration of the period for the completion of the laying down of distribution mains prescribed by the Commissioners in the order. A.D. 1928.

(6) The provisions of sections 59 (Maximum power) and 60 (Inspectors &c.) of the Act of 1901 shall not apply to a supply of electricity for lighting and general domestic purposes (including office purposes) in the area specified in any order made by the Commissioners under subsection (4) of this section or to any mains used exclusively for the purposes of giving such a supply.

(7) If the Company make default in laying down any distributing mains in accordance with the provisions of any order made by the Commissioners under subsection (4) of this section they shall be liable for each default to a penalty not exceeding five pounds for each day during which the default continues and if the Minister is of opinion in any case that the default is wilful and unreasonably prolonged he may after considering any representations of the local authority concerned revoke the powers of the Company to supply electricity for lighting and general domestic purposes (including office purposes) in the area specified in the order or any part thereof.

49. Notwithstanding anything in this Part of this Act the following provisions for the protection of the mayor aldermen and burgesses of the county borough of Middlesbrough (in this section referred to as "the corporation") shall apply and have effect:— For protection of Middlesbrough Corporation.

Any area which may be added to the area of supply of the corporation by any Special Order made confirmed and approved in pursuance of the application made by them to the Commissioners in the month of March one thousand nine hundred and twenty-eight shall be deemed to have been at the date of the passing of this Act the area of supply of the corporation.

A.D. 1928.
 For protec-
 tion of
 Stokesley
 and Mid-
 dlesbrough
 Rural
 District
 Councils.

50. For the protection of the Stokesley and Middlesbrough Rural District Councils the following provisions shall unless otherwise agreed in writing between the said councils respectively and the Company apply and have effect (that is to say) :—

In relation to so much of any area in which the Company shall be authorised by the Special Order intituled the Stokesley Districts Electricity Special Order 1928 (for which application has been made to the Commissioners by the Company) to supply electricity as is situate in the existing area of supply the provisions of that Order and of the sections of the schedule to the Electric Lighting (Clauses) Act 1899 incorporated therewith shall while the Company remain the undertakers for the purposes of the Order have effect in lieu of any provisions of this Act or of the Act of 1901 which shall be inconsistent therewith and any supplies of electricity which the Company may give in the said area (other than supplies in bulk or to the owners or lessees of any railway tramway dock harbour water or canal undertaking) shall be deemed to be given by them as undertakers under the said Order.

PART IV.

ADDITIONAL POWERS IN RELATION TO THE AREA OF SUPPLY AND GENERAL PROVISIONS.

Power to
 lay electric
 mains in
 private
 streets.

51.—(1) For the purpose of supplying electricity to any premises within—

- (a) the area of supply; or
- (b) the area of supply in relation to any undertaking transferred (whether before or after the passing of this Act) to the Company under the powers of the existing Acts or this Act or authorised (whether before or after the passing of this Act) by a Provisional or Special Order granted to the Company;

and abutting on or being erected in any street laid out but not dedicated to public use or if so dedicated not repairable by the inhabitants at large (being a supply

which the Company are by the existing Acts or by virtue of this Act or any such Order as aforesaid authorised to give) the Company may lay down take up alter relay or renew in across or along such street such mains wires and apparatus as may be requisite or proper for furnishing such supply and the provisions of the principal Acts and of the schedule to the Electric Lighting (Clauses) Act 1899 so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes of this section as if all such streets had been specified in this Act : A.D. 1928.

Provided that a local authority shall for the purposes of this section be deemed to be (in addition to any other person) persons having the control or management of any street to which this section applies and which is situate within the area of that authority.

(2) The Company shall not exercise their powers under this section with respect to any street or road belonging to or maintained by a railway company or forming the approach to any station or depôt of such railway company except with the consent of such railway company which consent shall not be unreasonably withheld and in carrying out any works authorised by this section the Company shall not unreasonably obstruct or interfere with the convenient access to any such street or road.

52. The Company on the one hand and any authorised undertakers or any company body or person to whom the Company are entitled to give a supply of electricity on the other hand may enter into and carry into effect contracts agreements and arrangements for and with respect to the construction laying down maintenance or repair by any such undertakers company body or person on behalf of the Company or by the Company on behalf of any such undertakers company body or person of electric lines or other works or apparatus connected therewith for the supply or use of electricity or the exercise by either party to any such contract agreement or arrangement of any powers of the other of them in reference to the matters aforesaid Provided that the execution or exercise of any such works or powers shall be subject to any statutory provisions or regulations which would have related to the execution Agreements for exercise of works &c.

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A.D. 1928. — or exercise thereof by such undertakers company body or person or by the Company as the case may be.

Agreements
with Gov-
ernment
departments
and others.

53. Subject to the provisions of this Act the Company on the one hand and any Government department or person interested in any river stream canal or navigation within the area of supply or any of them on the other hand may from time to time enter into and carry into effect contracts agreements and arrangements for and with respect to the construction laying down alteration maintenance repair and use of electric lines pipes works appliances and apparatus for the purposes of the existing Acts and this Act on the bed banks and foreshore of any such river stream canal or navigation :

Provided that no such electric line pipe work appliance or apparatus shall be laid in the bed or banks of any stream which is a drain within the meaning of the West Riding of Yorkshire County Council (Drainage) Act 1923 without the consent in writing of the county council of the west riding of Yorkshire (which consent if given may be given subject to conditions) and that nothing in this section shall affect the operation of the said Act of 1923.

Agreements
with railway
companies
for works.

54. The Company on the one hand and any railway company whose railway or any part thereof is situate within the area of supply on the other hand may enter into and carry into effect agreements for and in relation to the construction laying down alteration maintenance repair and use of works and electric lines for the purposes of the existing Acts and this Act upon across or affecting railways bridges or other property of any such railway company.

For further
protection
of Post-
master
General.

55. Subsections (4) and (5) of section 22 of the Electricity (Supply) Act 1919 shall so far as applicable extend and apply to any works executed under any contract or agreement made in pursuance of the sections of this Act of which the marginal notes are respectively "Agreements with Government departments and others" and "Agreements with railway companies for works."

Lands by
agreement.

56. The Company may for the general purposes of the undertaking purchase or take on lease (by agreement but not otherwise) and hold any lands and hereditaments within the area of supply which the Company may

from time to time require for any of the purposes of this Act or of the undertaking but the Company shall not create or permit a nuisance on any such lands : A.D. 1928.

Provided that the Company shall not (save so far as they may be authorised so to do by competent authority) erect any station for generating electricity on any lands acquired under this section.

57. The Company may erect and maintain upon the lands for the time being belonging to or held on lease by them or as to which they may have acquired any right or permission so to do and may acquire and hold cottages or dwelling-houses for their officers and servants and other buildings in connection with or for the purposes of the undertaking. Dwelling-houses for employees.

58. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of the existing Acts and this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

59. Notwithstanding any provisions of the Lands Clauses Acts the Company may sell grant or lease for such periods and for such consideration as they think fit any lands houses and property for the time being belonging to them which they do not require for the purposes of the undertaking or any interest right or easement therein. Company may dispose of lands not required.

60.—(1) Any provisions in the existing Acts which refer to Provisional Orders made or to be made under the Electric Lighting Acts 1882 and 1888 shall be construed as including reference to Special Orders made or to be made under the principal Acts or under any general Act to be hereafter passed amending or in substitution for those Acts. As to Provisional and Special Orders.

(2) The Company may apply for Special or other Orders under the Electricity (Supply) Acts 1882 to 1926.

A.D. 1928.

Separate
meters in
certain
cases.

61. If electricity supplied by the Company to any consumer (other than authorised distributors) within the area of supply is used partly for the purposes mentioned in Section II of the schedule to this Act or any of them and partly for other purposes the Company may require that the electricity used for such first-mentioned purposes or any of them shall be measured by a separate meter and paid for as electricity to which the said Section II applies.

Notice of
discontinu-
ance of
supply.

62.—(1) Any authorised undertakers company body or person supplied with electricity by the Company under this Act who desire or desires that the Company shall cease to give to them or him such supply shall (unless it is otherwise provided in any agreement whether existing at the date of the passing of this Act or thereafter entered into between any such undertakers company body or person and the Company or unless such agreement is for a fixed term) give to the Company in the case of a supply for lighting or general domestic purposes (including office purposes) one month's notice in writing expiring on one of the usual quarter days and in all other cases twelve months' notice in writing so expiring to cease giving such supply. Such notice shall not be given so as to expire before the end of the period for which the authorised undertakers company body or person giving the notice have contracted to receive and pay for the supply.

(2) No such notice shall be of any effect unless it be in writing signed by or on behalf of the consumer and left with or sent by post to the Company at the head office or any recognised local office of the Company. Notice of the effect of this subsection shall be endorsed upon any demand note of the Company for charges for electricity.

For pre-
vention of
improper
use.

63. If any authorised undertakers company body or person uses or deals with the electricity supplied to them or him by the Company in such manner as to interfere unduly or improperly with the efficient supply of electricity to any other authorised undertakers company body or person by the Company the Company may if they think fit cease to supply electricity to the first mentioned authorised undertakers company body or person.

64. If any consumer of electricity supplied by the Company under the terms of any agreement uses the electricity supplied to him by the Company in any manner contrary to the terms of such agreement the Company may if they think fit discontinue to supply electricity to such consumer until they are satisfied that any electricity so supplied will be used in accordance with the terms of such agreement :

A.D. 1928.

—
Provisions
as to supply
of electri-
city by
agreement.

Provided that before discontinuing any such supply the Company shall give to the consumer taking the same seven days' notice in writing of their intention so to do and shall in such notice specify in what respect the electricity is used contrary to the terms of such agreement.

65. Any person who shall hinder an officer appointed by the Company from entering any premises in pursuance of section 24 (Power to enter lands or premises for ascertaining quantities of electricity consumed or to remove fittings &c.) of the Electric Lighting Act 1882 or from exercising the powers contained in that section shall be liable to a penalty not exceeding forty shillings.

Entry on
premises.

Where any premises which the Company or their officers are entitled to enter in pursuance of section 24 of the Electric Lighting Act 1882 are unoccupied the Company or their officers may after giving not less than forty-eight hours' notice to the owner thereof or if he or his address is unknown to the Company and cannot be ascertained after diligent inquiry by affixing such notice upon a conspicuous part of the premises forcibly enter the same doing no unnecessary damage.

66. The Company may refuse to supply electricity to any person from whom any payment for the supply of electricity or meter rent is for the time being in arrear (not being the subject of a bonâ fide dispute) whether the payment be due to the Company in respect of the premises for which a supply is demanded or in respect of other premises.

Power to
refuse to
supply
electricity
in certain
cases.

67. If any person without lawful excuse (the proof whereof shall lie on him) shall wilfully interfere with any works or apparatus used for or in connection with the supply of electricity for the purposes of this Act or do or cause to be done anything which is calculated to interfere with or damage such works or apparatus he shall for every such offence (without prejudice to any other liability or

Penalty for
interference
with works.

[Ch. cxv.] *Cleveland and Durham* [18 & 19 GEO. 5.]
County Electric Power Act, 1928.

A.D. 1928. — cause of action which may arise out of or by reason of such act) be liable to a penalty not exceeding five pounds.

Compensation for deprivation of employment.

68. Nothing in the existing Acts or this Act shall prejudice or affect any right or interest of any officer or servant of any authorised undertakers under the provisions of section 15 of the Electricity (Supply) Act 1926 and the enactments and schedule therein referred to and the said provisions shall extend and apply to any officer or servant of any authorised undertakers affected by the closing (permanent or temporary) or alteration in the working or use of or the acquisition of a generating station or by the acquisition of a main transmission line or any part thereof under or in consequence of any contract or agreement entered into by the Company under the provisions of the existing Acts or this Act with any authority company or person and the provisions of the said section 15 and the enactments and schedule therein referred to shall apply and have effect as if such closing or acquisition were a closing or acquisition under or in consequence of the said Act of 1926 and such alteration were a restriction imposed by or under a scheme under that Act.

Commissioners may make Special Orders providing for relation between charges and divisible profits &c.

69.—(1) The Commissioners may at any time and from time to time after the expiration of seven years from the date of the passing of this Act or at any time and from time to time after the date at which the Company commence to receive a supply of electricity from the Central Electricity Board (whichever shall be the earlier) by a Special Order under section 26 of the Electricity (Supply) Act 1919 make provision as to the relation between the charges to be made by the Company for electricity supplied under the existing Acts and this Act and the divisible profits on the capital of the Company and subsection (1) of section 32 of the Electricity (Supply) Act 1926 shall accordingly apply and have effect as if the Company were a company with respect to which the Commissioners are by that subsection empowered to make a Special Order.

(2) The Commissioners shall also have power by any such Special Order made by them under subsection (1) of this section to make provision for any such modification or variation of the provisions of section 63 (Relation between price and dividend) of the Act of 1901 as in the

opinion of the Commissioners may be requisite consequent upon the passing of this Act and the making by them of a Special Order under subsection (1) of this section and any provisions so made shall have effect in substitution for the provisions of the said section. A.D. 1928.
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70. The Commissioners may by Special Order under the Electricity (Supply) Acts 1882 to 1926 increase the capital and borrowing powers of the Company authorised by the existing Acts and the Company are hereby authorised to make application for such Special Orders. Any Special Order made by the Commissioners in pursuance of this section shall be deemed to be a Special Order under section 26 of the Electricity (Supply) Act 1919. Increase of capital by Special Order.

71. The Company may apply for or towards the purposes of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise under the authority of the Act of 1901 as amended by the Act of 1903. Power to apply funds.

72. The Company shall not under the powers of this Act construct on over or under the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily. Works below high-water mark not to be constructed without consent of Board of Trade.

73.—(1) Where any work constructed by the Company under the powers of this Act and situate wholly or Abatement of work abandoned or decayed.

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County Electric Power Act, 1928.

A.D. 1928, — partially on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Board of Trade may by notice in writing either require the Company at their own expense to repair and restore such part of such work as is situate below high-water mark of ordinary spring tides or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Board of Trade may think proper.

(2) Where any part of any such work which has been abandoned or suffered to fall into decay is situate above the high-water mark of ordinary spring tides and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore the Board of Trade may include any such part of such work or any portion thereof in any notice under this section.

(3) If during the period of thirty days from the date when the notice is served upon the Company they have failed to comply with such notice the Board of Trade may execute the works required to be done by the notice at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt.

Arbitration.

74. Where under this Act any question or dispute is to be referred to arbitration then unless other provision is made the reference shall be to an arbitrator agreed on between the parties or failing agreement appointed by the Minister on the application of either party after notice to the other.

Recovery of penalties &c.

75. Save as is otherwise by the existing Acts and this Act expressly provided all offences against the existing Acts and this Act and all penalties forfeitures costs and expenses imposed or recoverable under the existing Acts and this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

76. Proceedings for the recovery of any demand made under the authority of the existing Acts or this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. A.D. 1928.
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Recovery of demands.

77.—(1) Nothing in this Act shall prejudice or affect the right of any authorised distributors to apply for or take a supply of electricity from any local authority company body or person which may be authorised to give such a supply nor the right of any such local authority company body or person to give a supply of electricity to any authorised distributors. Saving for authorised distributors.

(2) In this section “authorised distributors” means in relation to the new area of supply authorised distributors as defined in the section of this Act of which the marginal note is “Meaning of certain expressions in this Part of this Act” and in relation to the existing area of supply authorised distributors as defined in section 4 (Interpretation) of the Act of 1901.

78. The following sections of the Act of 1901 are hereby repealed (namely):— Repeal.

Section 44 (Overhead wires);

Section 67 (Recovery of demands).

79. For the protection of the Sunderland and South Shields Water Company (in this section called “the water company”) the following provisions shall unless otherwise agreed between the Company and the water company apply and have effect (that is to say):— For protection of Sunderland and South Shields Water Company.

Nothing in this Act shall derogate from the provisions of section 52 (For protection of Sunderland and South Shields Water Company) of the Act of 1901 and the said section shall extend and apply to all mains pipes and other works of the water company now or hereafter laid in any street not repairable by the local authority whether within the area of supply of the Durham Company as defined in section 5 (Limits of Act) of the County of Durham Electric Power Supply Act 1900 or within the existing area of supply

A.D. 1928.

in relation to any operations of the Company or the Newcastle Company under this Act which may affect any such mains pipes or other works of the water company and as if the reference in the said section 52 to section 18 of the Electric Lighting (Clauses) Act 1899 were a reference to section 18 of the schedule to the said last-mentioned Act.

For protection of Yorkshire Electric Power Company.

80. Nothing contained in this Act shall deprive the Yorkshire Electric Power Company of any right exercisable by them under section 21 (Supply in bulk) of the Yorkshire Electric Power Act 1927 to supply electricity in bulk to the mayor aldermen and burgesses of the borough of Harrogate or to the lord mayor aldermen and citizens of the city of York or render necessary the consent of the Company to any such supply.

For further protection of Yorkshire Electric Power Company.

81. For the protection of the Yorkshire Electric Power Company (in this section called "the Yorkshire Company") the following provisions shall unless otherwise agreed between the Company and the Yorkshire Company have effect notwithstanding anything in this Act (that is to say):—

(1) In this section the expression "the Yorkshire limits" means the area of supply of the Yorkshire Company under the Yorkshire Electric Power Acts 1901 to 1927 and the area or areas of supply of the Yorkshire Company defined in any Special Order or Special Orders which shall be made by the Commissioners and confirmed by the Minister and approved by Parliament upon the applications made by the Yorkshire Company to the Commissioners in the month of December one thousand nine hundred and twenty-seven under the title of the Isle of Axholme and District Electricity Special Order 1928 and in the month of February one thousand nine hundred and twenty-eight under the title of the Yorkshire Electric Power Eastern Extension Electricity Special Order 1928 :

(2) The Company shall not supply electricity within or for use within the Yorkshire limits nor shall electricity supplied by the Company be used within the said limits.

82. For the protection of Electrical Distribution of Yorkshire Limited (in this section called "the Yorkshire Distribution Company") the following provisions shall unless otherwise agreed between the Company and the Yorkshire Distribution Company have effect notwithstanding anything in this Act (that is to say):—

A.D. 1928.

—
 For protec-
 tion of
 Electrical
 Distribution
 of York-
 shire
 Limited.

The Company shall not supply electricity within or for use within nor shall electricity supplied by the Company be used within the areas of supply of the Yorkshire Distribution Company under any Provisional or Special Order granted to the said Company and subsisting at the date of the passing of this Act.

83. For the protection of the London and North Eastern Railway Company and every other railway company owning a railway in the area of supply (each of which is in this section referred to as "the railway company") the following provisions shall unless otherwise agreed between the Company and the railway company have effect (that is to say):—

For protec-
 tion of
 London and
 North
 Eastern
 Railway
 Company
 and other
 railway
 companies.

- (1) Section 20 of the schedule to the Electric Lighting (Clauses) Act 1899 shall in its application to the Company have effect as if after the words "electric signalling communication" wherever they occur there were inserted the words "or electrical control of railways of a railway company":
- (2) If having regard to the proposed position of any electric lines of the Company in relation to the position of the works of the railway company at any point where electric lines of the Company will be constructed under the powers of this Act over or under any railway of the railway company it becomes advisable in order to avoid danger from the breaking or falling of wires that the electric telegraphic telephonic or signal wires or apparatus of the railway company should be altered the railway company may execute any works reasonably necessary for such alteration and the reasonable expense of executing those works shall be borne by the Company:

A.D. 1928.

(3) If the railway company at any time or times hereafter require (of which they shall be the sole judges) to widen alter reconstruct or repair their existing works or to construct any additional or other works in or upon or in connection with the railway of the railway company upon across over or under which any electric lines of the Company may have been constructed or laid under the powers of this Act or to adapt their railway or any part or parts thereof for working by electrical power or if at any time or times hereafter a bridge repairable in whole or in part by the railway company is constructed in substitution for a level crossing upon across or under which any electric lines of the Company may have been so constructed or laid the Company shall on receipt of notice in writing under the hand of the secretary to the railway company divert alter support or carry (so far only as may be reasonably necessary) such electric lines across over or under the railway of the railway company at any other point or otherwise deal with the same within as short a time and in as convenient a manner as circumstances will admit and to the reasonable satisfaction of the engineer of the railway company and the railway company shall not be liable to pay compensation in respect of such diversion alteration supporting carrying or dealing with such electric lines or other works. Provided always that if the Company shall fail or neglect to carry out or complete the same to such satisfaction as aforesaid within a reasonable time the railway company may themselves carry out or may complete the same:

(4) Any additional expense which the railway company may reasonably and properly incur in widening altering reconstructing or repairing their railway under any powers of the railway company in that behalf existing at the date of the passing of this Act or in adapting their railway for working by electrical power by reason of the existence of any electric lines of the Company placed or laid under the powers of this

Act upon across over or under the same or A.D. 1928.
occasioned by any such failure neglect or delay
as is referred to in subsection (3) of this section
shall be paid by the Company: —

- (5) The Company shall bear and on demand pay to the railway company all reasonable costs of watching lighting and protection of the railway of the railway company with reference to and during the construction and repair under the powers of this Act of any works of the Company affecting such railway :
- (6) The Company shall give to the railway company fourteen days' notice in writing of any application to be made by the Company to the Minister under section 10 (b) of the schedule to the Electric Lighting (Clauses) Act 1899 or under section 21 of the Electricity (Supply) Act 1919 or under this Act for the consent of the Minister to the placing of any electric lines above ground over any street or over or under any bridge owned or repairable by the railway company :
- (7) Any difference between the Company and the railway company arising under this section shall be referred to arbitration :
- (8) The provisions of this section shall extend and apply to the Newcastle Company in respect of any works which may be executed by the Newcastle Company under the powers of this Act as if that Company had been mentioned in this section instead of the Company.

84. Section 46 of the Act of 1901 is hereby repealed and notwithstanding anything contained in the existing Acts or in this Act the execution or exercise by the Company or the Newcastle Company of the works or powers by the existing Acts or this Act authorised or conferred so far as they affect the main roads and county bridges of the county of Durham or of the north west or east riding of the county of York the following provisions for the protection of the respective county councils of the said county and ridings shall have effect unless otherwise agreed on in writing between those councils

For protec-
tion of
county
councils.

[Ch. cxv.] *Cleveland and Durham* [18 & 19 GEO. 5.]
County Electric Power Act, 1928.

A.D. 1928. — respectively and the Company or the Newcastle Company
(as the case may be) (that is to say) :—

- (1) In this section “the council” means with regard to the said county of Durham the county council of that county and with regard to each of the said ridings the county council of that riding “the operating Company” means the Company or the Newcastle Company (as the case may be) “bridge” includes both county bridges and other bridges on main roads repairable by the council and includes culverts “the surveyor” means as regards the said county of Durham the county surveyor for that county and as regards each of the said ridings the surveyor for that riding :
- (2) All electric lines to be constructed or laid in any main road repairable by the council shall unless otherwise required by the Minister of Transport be constructed and laid at the side thereof which the council shall by writing under the hand of the surveyor direct and shall not without the surveyor’s written consent be constructed or laid in upon or across any bridge or any arch connected therewith but shall (if the surveyor shall not consent to their being laid in upon or across any such bridge or arch) be attached to the outside of such bridge in such position and manner as the surveyor shall in writing reasonably direct :
- (3) Electric lines shall be so laid and maintained as not unnecessarily to interfere with the traffic of any main road or bridge or any approaches thereto :
- (4) The operating Company shall pay to the council the reasonable costs in relation to the examination of the plans which in accordance with the provisions of the Electric Lighting (Clauses) Act 1899 are served on the council and the superintendence by the surveyor of the breaking up of any main road repairable by the council or any bridge :

- (5) Notwithstanding anything contained in the existing Acts or this Act or any enactment incorporated therewith it shall be lawful for the council at any time or times to divert or improve any main road and also to remove alter or renew any bridge or the approaches thereto alongside or near to which any electric lines are laid under any of the existing Acts or this Act in the same manner as they might have diverted or improved removed altered or renewed any such main road or bridge or the approaches thereto if the said Acts had not been passed and such electric lines had not been laid in or over such main road or bridge respectively without making any compensation to the operating Company for any expense or loss to which the operating Company may be put in consequence of such diversion improvement removal alteration or renewal Any alteration of the position of any electric lines of the operating Company necessitated by the diversion improvement removal alteration or renewal of any such main road or bridge or the approaches thereto shall be effected at the expense of the operating Company and if in order to avoid interruption to the supply of electricity by the operating Company it is necessary to do so the operating Company may temporarily carry their electric lines overhead or at the side of any such road or bridge or approaches thereto in such manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the council Provided that before such diversion improvement removal alteration or renewal of any such main road or bridge as aforesaid shall be commenced the council shall give one month's notice in writing to the operating Company of their intention to carry out such works and the council shall afford at the like cost of the operating Company all reasonable facilities for temporarily carrying the electric lines of the operating Company along the main road or across the stream so as not to interrupt the continuous supply of electricity :

A.D. 1928.

[Ch. cxv.] *Cleveland and Durham* [18 & 19 GEO. 5.]
County Electric Power Act, 1928.

A.D. 1928.

- (6) When the diversion improvement altering or renewal of such main road bridge or approaches shall have been completed the operating Company shall have the same rights and powers with regard to the same as they had before the works were carried out :
- (7) The council shall not be liable for any injury which may be occasioned to the electric lines of the operating Company laid in any main road repairable by the council or along any bridge by the reasonable acts of the council in repairing such main road or bridge whether by means of steam rollers or otherwise :
- (8) Nothing in the existing Acts or this Act shall impose upon the county council of the county of Durham and of the north riding of the county of York any liability which was not by law imposed on them prior to the passing of the Act of 1901 and nothing in this Act shall impose upon the county councils of the west and east ridings of the county of York any liability which was not by law imposed upon them prior to the passing of this Act :
- (9) The operating Company shall to the reasonable satisfaction of the surveyor keep all main roads which shall be broken up under the existing Acts or this Act or the enactments incorporated therewith for the purpose of constructing laying or repairing any works in good repair for twelve months after replacing and making good the same :
- (10) If any difference arise between the operating Company and the council touching this section or anything to be done or not to be done thereunder such difference shall be settled by an engineer to be appointed by the Minister of Transport on the application of either of the parties in difference.

For protection of Newcastle-upon-Tyne Corporation.

85. For the protection of the lord mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne (in this section respectively referred to as "the corporation" and "the city") the following provisions

shall notwithstanding anything contained in this Act A.D. 1928.
apply and have effect :—

- (1) In the event of the corporation requiring the Newcastle Company to sell to them any undertaking of that company which the corporation have at the date of the passing of this Act power to require that company to sell to them any difference as to the amount to be paid by the corporation to the Newcastle Company shall be settled as if this Act had not been passed and as if any agreements entered into under this Act between the Company and the Newcastle Company had not been made and as if any works done under the powers of this Act did not exist :
- (2) No agreement under the provisions of this Act for the interchange or supply of electricity for use within the city or for the laying sale or transfer of electric lines or other works or apparatus within the city for supply of or which could reasonably be used for the supply of electricity within or for use within the city shall be entered into without the consent in writing of the corporation under their common seal and subject to such terms and conditions as the corporation may think fit :
- (3) Until the completion of the purchase by the corporation of the said undertakings no agreement shall be entered into by the Newcastle Company under the provisions of this Act without the consent in writing of the corporation under their common seal and subject to such terms and conditions as the corporation may think fit except agreements with respect to the laying sale or transfer of electric lines or other works or apparatus in the area of supply of the Company or of the Durham Company (not being electric lines or other works or apparatus for supply of or which could reasonably be used for the supply of electricity within or for use within the city) and agreements for the interchange or supply of electricity for use outside the city.

86. For the protection of the lord mayor aldermen and citizens of the city county and county borough of York (in this section respectively referred to as "the Corporation, For protec-
tion of York
Corpora-
tion,

[Ch. cxv.] *Cleveland and Durham* [18 & 19 GEO. 5.]
County Electric Power Act, 1928.

A.D. 1928. — corporation " and " the city ") the following provisions shall unless otherwise agreed in writing between the Company and the corporation apply and have effect notwithstanding anything contained in this Act (that is to say) :—

(1) In this section the expression " the area of supply of the corporation " means the area of supply of the corporation under the York Electricity Acts and Orders 1890 to 1914 and any area which may be added to that area of supply by any Special Order made by the Commissioners confirmed by the Minister and approved by Parliament in pursuance of the application made by them in the month of May one thousand nine hundred and twenty-eight under the title of the York Electricity (Extension) Special Order 1928 :

(2) The Company shall not supply electricity at any point within the area of supply of the corporation to the owners or lessees of any statutory water undertaking for the purpose of pumping :

(3) The Company shall not supply electricity under the powers of the section of this Act of which the marginal note is " Principal powers of supply in new area of supply " at any point within the area of supply of the corporation to the owners or lessees of any railway undertaking for the purpose of pumping :

(4) The Company shall not under the powers of this Act—

(i) break up any street for the purpose of laying electric lines therein ;

(ii) place any electric line above ground in or across any street ; or

(iii) exercise the powers of the section of this Act of which the marginal note is " Power to erect telephones &c." in or across any street ;

within a distance of one and one-half miles from the centre of Ouse Bridge in the city.

87. For the protection of the mayor aldermen and burgesses of the borough of Harrogate (in this section respectively referred to as "the corporation" and "the borough") the following provisions shall unless otherwise agreed in writing between the Company and the corporation apply and have effect notwithstanding anything contained in this Act (that is to say):—

A.D. 1928.

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For protec-
tion of Har-
rogate Cor-
poration.

- (1) In this section the expression "the area of supply of the corporation" means the area of supply of the corporation under the Harrogate Electricity Orders 1891 to 1927 and any area which may be added to that area of supply by any Special Order made by the Commissioners confirmed by the Minister and approved by Parliament in pursuance of the application made by them in the month of February one thousand nine hundred and twenty-eight under the title of the Harrogate Electricity (Extension) Special Order 1928 :
- (2) The Company shall not supply electricity at any point within the area of supply of the corporation to the owners or lessees of any statutory water undertaking for the purpose of pumping :
- (3) The Company shall not supply electricity under the powers of the section of this Act of which the marginal note is "Principal powers of supply in new area of supply" at any point within the area of supply of the corporation to the owners or lessees of any railway undertaking for the purpose of pumping :
- (4) The Company shall not under the powers of this Act place any electric line above ground or exercise by means of overhead lines the powers of the section of this Act of which the marginal note is "Power to erect telephones &c." in or across any street within a distance of one mile from the Royal Pump Room in the borough :
- (5) The Company shall not under the powers of this Act make any excavation or opening or do any other act in contravention of the provisions of section 5 (For the better protection and preservation of wells and springs) of the Harrogate Corporation Act 1901.

A.D. 1928.

For protec-
tion of
Ripon Cor-
poration.

88. For the protection of the mayor aldermen and citizens of the city of Ripon (in this section called "the corporation") the following provisions shall unless otherwise agreed in writing between the Company and the corporation apply and have effect notwithstanding anything contained in this Act (that is to say):—

- (1) The Company shall not supply electricity at any point within the area of supply of the corporation under the Ripon and District Electricity Special Order 1927 (in this section referred to as "the area of supply of the corporation") to the owners or lessees of any statutory water undertaking for the purpose of pumping:
- (2) The Company shall not supply electricity under the powers of the section of this Act of which the marginal note is "Principal powers of supply in new area of supply" at any point within the area of supply of the corporation to the owners or lessees of any railway undertaking for the purpose of pumping.

For protec-
tion of
Weardale
Rural
District
Council.

89. For the protection of the Weardale Rural District Council the following provisions shall unless otherwise agreed in writing between the said council and the Company apply and have effect (that is to say):—

- (1) In relation to so much of any area in which the Company shall be authorised by the Special Order intituled the Wear Valley Electricity Special Order 1928 (for which application has been made to the Commissioners by the Company) to supply electricity as is comprised within the Weardale Rural District the provisions of that Order and of the sections of the schedule to the Electric Lighting (Clauses) Act 1899 incorporated therewith shall have effect in lieu of any provisions of this Act or of the Act of 1901 which shall be inconsistent therewith:
- (2) Notwithstanding anything contained in this Act the right of purchase exerciseable by the Weardale Rural District Council in respect of so much of the area of supply under the said Order as is comprised within their district shall (if the same

be made by the Commissioners confirmed by the Minister and approved by Parliament) be and continue to be exerciseable: A.D. 1928.

- (3) Any supplies of electricity which the Company may give in so much of the area of supply under the said Order as is comprised within the Wear-dale Rural District (other than supplies in bulk or to the owners or lessees of any railway undertaking for the purpose of haulage or traction or for lighting vehicles) shall be deemed to be given by them as undertakers under the said Order.

90. Notwithstanding anything contained in the existing Acts and this Act and the provisions incorporated therewith or applied for the purposes thereof respectively—

- (i) the provisions of section 48 of the Act of 1901 shall apply in respect of any electric lines or works of the Company and the Newcastle Company laid or used under the powers of this Act in the borough of Thornaby-on-Tees as constituted at the date of the passing of this Act;
- (ii) the provisions of section 50 of the Act of 1901 shall apply in respect of any electric lines or works of the Company and the Newcastle Company laid or used under the powers of this Act in the county borough of Middlesbrough and the borough of Hartlepool respectively as respectively constituted at the date of the passing of this Act; and
- (iii) the provisions of the said section 50 of the Act of 1901 shall apply in respect of any electric lines or works of the Company laid or used under the powers of this Act in the county boroughs of West Hartlepool and Darlington and the borough of Stockton-on-Tees respectively as respectively constituted at the date of the passing of this Act.

91. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the

For protec-
tion of
Thornaby-
on-Tees
Middles-
brough
Stockton-
on-Tees
Darlington
Hartlepool
and West
Hartlepool
Corpora-
tions.

Crown
rights.

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A.D. 1928. Company to take use or in any manner interfere with any
— portion of the shore or bed of the sea or of any river
channel creek bay or estuary or any land hereditaments
subjects or rights of whatsoever description belonging to
His Majesty in right of His Crown and under the manage-
ment of the Commissioners of Crown Lands or of the
Board of Trade respectively without the consent in
writing of the Commissioners of Crown Lands or the
Board of Trade as the case may be on behalf of His
Majesty first had and obtained for that purpose.

Costs of Act. **92.** All costs charges and expenses of and incident
to the preparing for obtaining and passing of this Act
or otherwise in relation thereto shall be paid by the
Company.

The SCHEDULE referred to in the
foregoing Act.

A.D. 1928.

MAXIMUM PRICES.

In this schedule—

The expression “ unit ” means the electricity contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour;

The expression “ kilovolt ampère ” means the current in ampères actually used multiplied by the declared pressure of supply in volts and divided by one thousand;

The expression “ consumer ” means any authorised undertakers local authority company body or person supplied by the Company with electricity under the powers of the foregoing Act.

SECTION I.

Maximum rates for a supply of electricity in bulk or for power :—

- (a) A sum of six pounds per kilovolt ampère per annum of the maximum power required to be supplied to the consumer and in addition
- (b) A sum of three halfpence per unit for all units supplied to the consumer.

SECTION II.

Maximum rates for a supply of electricity for lighting or general domestic purposes (including office purposes) :—

- (1) Where the Company do not charge in accordance with paragraph (2) or paragraph (3) of this section—
 - (a) A sum payable quarterly in advance of thirty pounds per kilowatt per annum based on (i) seventy per centum of the wattage of the lighting installation in the case of premises used only for private residence and (ii) the total wattage of the lighting installation in the case of other premises and in addition
 - (b) A sum of twopence per unit for all units supplied to the consumer.

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- (2) Where the Company charge any consumer by the actual amount of energy supplied to him—

The rate of one shilling per unit Provided that the Company may make the following minimum charges (exclusive of meter rental) if energy to the value of the following amounts is not actually consumed (that is to say) :—

(a) In respect of the quarters ending thirty-first March and thirty-first December fifteen shillings;

(b) In respect of the quarters ending thirtieth June and thirtieth September ten shillings.

- (3) Where the Company charge any consumer by the electrical quantity contained in the supply given to him they shall charge him according to the rates set forth in paragraph (2) of this section and the amount of energy supplied to him shall be taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Company under the regulations of the Commissioners.

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